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FOOD DISCRIMINATION AGAINST CHILDREN IN UGANDA

THE ROLE OF UGANDA'S NUTRIENT PROFILE MODEL TOWARDS PROTECTING CHILDREN NUTRITIONAL RIGHTS



UGANDA'S ''NUTRITION TRANSITION,'' INFLUX OF ULTRA-PROCESSED FOODS AND DOUBLE DISEASE BURDEN

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INTRODUCTION

Discrimination means any distinction, exclusion, restriction or preference based on race, colour, descent, or national or ethnic origin which has the purpose or effect of nullifying or impairing the recognition, enjoyment or exercise, on an equal footing, of human rights and fundamental freedoms in the political, economic, social, cultural or any other field of public life (Article 1 (1) of the International Convention on the Elimination of All Forms of Racial Discrimination (1969)). The disparity in food quality basing on market size and anticipated profit margins reveals a troubling double standard in corporate practices and underscores the role of the Nutrient Profiling Model for stronger food regulation, public health safeguards, and corporate accountability to protect the health of the Ugandan populations. By prioritising profit over public welfare, corporations have contributed to deepened food inequality, especially in developing countries where regulatory safeguards are limited or under-enforced. Furthermore fair pricing of good quality food products is not only a matter of market ethics but a critical step toward upholding children's right to food.

On other hand Nutrient profiling is "the science of classifying or ranking foods according to their nutritional composition for reasons related to preventing disease and promoting health".(Meeting Report On The Use Of Nutrient Profile Models in the WHO EUROPEAN REGION, SEPTEMBER 2021). Nutrient profiling is needed to guide the formulation of policy, such as front-of-pack warning labelling, marketing, taxation, and consumer education. The World Health Organization (WHO) Regional Office for Africa (AFRO) conducted a study on the need for a Nutrient Profile Model (NPM) in Africa, with Uganda among the countries involved in the pilot testing phase (World Health Organization. (2019). *Nutrient Profile Model for the WHO African Region)*. On August 12, 2026, Uganda formally launched one of the most comprehensive nutrient profile models (NPM).

Section 6 (1) (a) and (b) of the Food and Drugs Act Cap. 307 criminalizes the sale of food unfit for human consumption, and *Sections, 172 and 173 of the Penal Code Act Cap.128* respectively criminalize the sale of adulterated and noxious foods.

The Nutrient Profiling Model is not merely a scientific tool, but a yardstick upon which Uganda's legal framework can base to provide a broader and more precise definition of what constitutes food that is unfit for human consumption, adulterated, or noxious. Since existing legal framework is restrictive in defining what constitutes foods that are unfit for human consumption, adulterated or noxious. Given the fact that statutory provisions must be read as a whole without a single provision destroying or nullifying the other. One way through which this principle has been violated by the delayed adoption and implementation of an Evidence-Based Ugandan Nutrient Profile Model to accord broader interpretation to consumer protecting laws.

POOR QUALITY FOOD IMPORTS AND PRODUCTION

A troubling tendency of direct food discrimination against children in Uganda is exhibited by the import of poor quality food products, intentional manufacturing of low quality food products characterized with excessive nutrients of critical concern (high sugar, salt, and fats) and over pricing of good quality food products to the extent that individuals cannot afford them. As a developing country, Uganda is perceived as a low-value market by multinational corporate entities which results in to the supply of poorly processed unhealthy food products in to the Ugandan food market characterized with intended imbalances in nutrient thresholds. Many of these products do not meet the regulatory standards in many high-income countries and are not exported there. This practice contributes significantly to the growing burden of non-communicable diseases (NCDs) such as diabetes, hypertension, and heart disease among many children in Uganda and to other Ugandan consumers in general. Such trade trends have led to the influx of ultra-processed foods (UPFs) in Uganda exacerbating Uganda's Double Burden of Malnutrition. Since these supplies are notoriously poor in nutrients, characterized with excessive empty calories, sodium, and free sugars. When consumed by children, these foods displace traditional nutrient-dense diets, simultaneously driving pediatric overweight/obesity and worsening underlying micronutrient deficiencies such as iron, zinc, and vitamin A. According to the World Health Organization guidelines, all individuals, children, and adults should consume less than 10%, or preferably 5%, of free sugars in their diet (Guideline: sugars intake for adults and children. Geneva, World Health Organization, 2015). However, many ultra-processed food products imported and manufactured in Uganda contain thrice sugar content beyond the standardized sugar aggregate/threshold.



Rising the regulatory need for Uganda to enforce and implement Her Nutrient Profile Model, to set national sugar, salt and fat intake thresholds in ultra-processed foods.

The recommended salt consumption level is less than 5g per day and many children consume too much sodium through poorly processed salty food products (corresponding to an average of 9–12g of salt per day) and not enough potassium. High salt consumption and insufficient potassium intake (less than 3.5 g) contribute to high blood pressure which in turn increases the risk of heart disease and stroke.

UGANDA'S NUTRITION TRANSITION

According to the 2022 Uganda Demographic and Health Survey (UDHS), the prevalence of overweight and obesity among Ugandans was notably higher in women compared to men. Crucially, this trend is escalating among school-aged children and adolescents in urban settings, where early exposure to UPFs alters metabolic programming, increases childhood hypertension risks, and reduces long-term physical and cognitive development. Despite Uganda's protection as an agrarian country, (Article 25 of the Universal Declaration of Rights, 1948) rich in agricultural potential and indigenous foods, poor nutrition remains a gross concern in many parts of the Country. This is premised on the aggressive production and marketing of unhealthy food products excess in, sugar, salt and fats causing a detrimental consumption transition in the country's dietary decisions and habits, (Para 15, Report of the Special Rapporteur on the right to food, A/80/213), where people excessively consume nutrients of critical concern without guiding precautionary information or regulation.

Uganda has under gone a ''nutrition transition'' in the general population's food choices, from traditional, to ultra-processed foods (The 2003 Uganda Food And Nutrition Policy, Page 8) which has resulted into the influx of diet related Non-Communicable Diseases such as, type 2 diabetes, stomach cancer, cardiovascular diseases and obesity, in youths, women and children since food and nutrition are the underlying determinants for health and well-being (WHO European food and nutrition action plan 2015–2020). Due to this nutrition transition, currently the general population of Uganda especially the youth and children in urban centers and school settings over depend on ultra-processed foods with excess amounts of sugar, salt and fats. Resulting into the wide contraction of Non-communicable diseases which are the major health problems in Uganda (WHO, African Region, Country Disease Outlook Uganda, August 2023, Page, 139). Corresponding with the fact that many food processing companies have prioritized selling edible commodities over offering genuinely good food (Report of the Special Rapporteur on the right to food, Michael Fakhri, Corporate Power and Human Rights in Food Systems, A/80/213).

The unregulated consumption does not only result into diet related Non-Communicable Diseases on children but also lowers their Human Capital Index (HCI). Uganda's Human Capital Index (HCI) is as low as 0.38, indicating that children born currently are likely to be only 38% as less productive as they could be with complete education and full health (Uganda's Fourth National Development Plan, Page 193). All is exacerbated by poor diet resulting into less productive childhood, youthful and adulthood stages. Uganda's efforts to curb NCDs are continuously failing due to the sluggish pace on which food laws, policies and related tools such as the a Nutrient Profiling Model are enforced and implemented, exacerbating food discrimination and food fraud in the Country. According to the 2022 Uganda Demographic and Health Survey (UDHS), the prevalence of overweight and obesity among Ugandans was notably higher in women compared to men. Specifically, 26% of women and 11% of men aged 15 to 49 were classified as overweight or obese. This alone is an indicator of how urgently Uganda needs the implementation of a Nutrient Profile Model as a breeding ground for the formation of other policies such as Front of Pack Warning Labels to safe consumers. Since most of the diagnosed NCDs are driven by the consumption of diets high in nutrients of critical concern such as sugar, salt and fat among others.

THE ROLE OF UGANDA'S NUTRIENT PROFILE MODEL IN SAFEGUARDING CHILDREN



Uganda's Nutrient profile model needs to guide policy formulation like FOPWL, SSB taxes (fiscal policies) restriction of marketing of unhealthy food to children which regulate consumer choices, and encourage public health interventions. It can also assist public health planning by identifying priority foods for fortification or supplementation. Resultantly safeguarding the lives of youths and children. Children spend a significant portion of their daily life in educational settings, where unregulated school canteens and surrounding vendors market low-cost, nutrient-poor UPFs (Ultra-Processed Foods). The NPM provides the necessary legal baseline for the Ministry of Education and Sports and the Ministry of Health to establish mandatory school food procurement guidelines, restricting the sale, distribution, and promotion of high-threshold foods within and around school zones.

The main objective of food standardisation and quality control is to improve public health and standardise quality requirements for both local and international food trade. Thus, nutrient profiling is needed to provide an objective, science-based criteria for determining what constitutes "healthy" versus "unhealthy" foods in local and international food trade. A Nutrient Profiling Model yields multiple benefits to the children and youths. Yet such labels must as of necessity guarantee the consumer's right to information necessary for a consumer to know the nutrition content of the goods and services provided to him/her.(Nairobi Bottlers Limited v Mark Ndumia Ndung'u & Coca Cola Central, East & West Africa Ltd, Civil Appeal 99 OF 2018, Page 4).

CORPORATE NEGLIGENCE ON FOOD PRODUCTION

NPM can ultimately minimize negligence against children and other consumers. Since food manufacturers owe a duty of care to all their consumer they should exercise all necessary precautions to safe guard the lives of their consumers. A manufacturer of products which he sells with intent that they should reach the ultimate consumer with knowledge that such goods/products will result in an injury to the consumer's life owes a duty to the take reasonable care (Donoghue v Stevenson [1932] UKHL 100). A manufacturer can demonstrate such a duty of care by warning the consumer on the availability of nutrients of critical concern the food product. The Nutrient Profiling Model sets the threshold of what constitutes excess concentration of nutrients of critical concern such as sugar, salt, and fats, uniquely tailored on Uganda's Nutritional demands. Laying basis on how such foods can be labelled. In addition to establishing clear thresholds, the NPM acts as a gatekeeper against deceptive health claims. UPFs exceeding threshold limits for free sugars or sodium should be legally prohibited from displaying misleading positive claims (such as 'Rich in Vitamin C' or 'Energy-Boosting'), ensuring corporate duty of care is fully upheld to safeguard child consumers and the general population.

REGULATION OF AGGRESSIVE MARKETING OF EMPTY CALORIES

Marketing is the promotion, distribution, selling, advertising, product public relations and information services, promotion on the other hand is broadly interpreted to include the communication of messages that are designed to persuade or encourage the purchase or consumption of a product or raise awareness of a brand. Uganda's adoption of the NPM will enable the formulation of regulation on aggressive advertising and marketing of unhealthy foods especially to youths and children. Though outdoor advertising is a form of expression protected by the right to freedom of speech and expression (MacDonald Inc. v The Attorney General of Canada and others [1995] S.C.R 1999). In Uganda every person has the right to freedom of speech and expression, which includes freedom of express and other media (Article 29 (1) of the Constitution of the Republic of Uganda (19995)).

For avoidance of doubt, a person includes a corporate entity (Greenwatch and another v Golf Course Holdings Ltd HCCS No. 834 0f 2000). Though corporate entities are enjoined with the right to freedom of expression and speech which includes outdoor advertising, television adverts, and social media promotions. This right needs to be regulated and limited not to prejudice public interest and other rights such as the right to health, life, sufficient information, and, the right to adequate food. Therefore the adoption of a Nutrient Profiling Model will ensure that the food industries reformulates their products and stops advertising of ultra-processed foods harmful to human health.

LIMITATION OF DECEPTIVE ADVERTISEMENTS

Deceptive expressions and advisements targeted to children and parents need to be limited and regulated. The trend of highly exaggerated and deceptive adverts impliedly prejudice the public's general enjoyment of the fundamental rights to, adequate food, health, life, and, sufficient information. Aggressive advertising of unhealthy foods is contrary to public interest, premised on the fact that deceptive adverts greatly influence consumer food choices i.e parents and children repeatedly buy and use such misrepresented food products. (Article 43 (1) of the 1995 Constitution of Uganda, In the enjoyment of the rights and freedoms, no person shall prejudice the fundamental or other human rights and freedoms of others or the public interest.)

Furthermore, multinational beverage companies market "edible" but not food products with high empty calories targeting children and youth through influencers and adverts. They occasionally use special characters like cartoons while advertising to children, since cartoons are extensively appealing to children, influencing them towards consuming empty calories food products. For example in the case of Attorney General of Quebec v Kellog Canada Co. Ltd [1978] 2 SCR 211, the Canadian Province of Quebec forbid the use of special characters such as cartoons in advertisement targeting children since cartoons have a special appeal to children, their deception impact on children is greater if not controlled. The aggressive marketing and advertisement trends have resultantly contributed to the nutrition transition in children from preferring traditional food consumption to ultra-processed foods. Indirectly infringing children's right to adequate food by influencing their diet choices to less nutritional diets.

Uganda is a democratic society, guided by the values and principles essential to a free and democratic society which embody, respect for the inherent dignity of the human person, commitment to social justice and equality, accommodation of a wide variety of beliefs, respect for cultural and group identity, with inclusive individual and group participation in governance and decision making (R. v. Oakes [1986] 1 S.C.R. 103, [1986] S.C.J. No. 7, Page 27). The underlying values and principles of a free and democratic society are the genesis of the rights and freedoms guaranteed by the Bill of Rights and the ultimate standard against upon which limitation of a right or freedom must be based.

In each case involving a limitation of a right, Courts balance the interests of society with those of specified individuals and groups, this is what is commonly known as the proportionality test (R. v. Big M Drug Mart Ltd). Thus to limit cooperate false advertisement Courts need to consider the fact that advertisement is one way in which cooprate bodies increase sales and make profits while at the same time such advertisement is a contributing factor to the loss of 35% lives of Ugandans each year to Non-Communicable Diseases.

First, the proportionality test requires that measures adopted towards limiting a right must not be arbitrary, unfair or based on irrational considerations. Imposing SSB taxes on such adverts is a tested fair and rational step that can be considered by Ugandan Courts to limit such advertisement. Secondly, there must be a proportionality between the proposed measures for limiting the right or freedom, and the objective. Proportionality exists by the fact that misleading advertisement increases dependence on health threatening food products and imposing SSB taxes would limit public dependence on such products.

This leads to the objective test which asserts that an objective for limiting a right must be of sufficient importance to warrant overriding a constitutionally protected right or freedom, the objective must further be one which prima facie is reasonable and demonstrably justified in a free and democratic society. It is sufficiently important to limit false food advertisement in order to save the 35% annual deaths in Uganda whose major cause of death is related to consuming and using poorly processed food products.

The limitation of corporate advertising and marketing rights is one demonstrably justifiable in a free and democratic society, since the objective of this limitation is to safeguard the health of a delicate portion of the society i.e. children, youths and women. Proportionally the limitation does not aim at suffocating the corporates trade rights but however, to perform a Constitutional mandate of informing consumers the nutritional contents in their products.



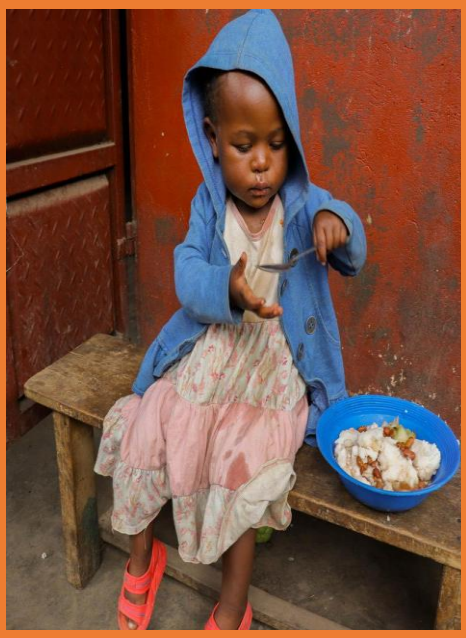
CHALLENGES AND CONSIDERATIONS

Insufficient Regulatory and Enforcement Capacity:

Uganda's existing legal framework lacks specificity regarding the regulation of food nutrient contents, *the Food and Drugs Act Cap. 307, the Food and Drugs (Food Fortification) Regulations S.I No. 2. Of 2025*, *the Penal Code* Cap. 128 and the *Public Health Act Cap. 310*, cannot ably regulate food nutrient contents in the absence of well enforced and implemented Nutrient Profiling Model. Bodies like the *Uganda National Bureau of Standards* widely and effectively depend on the NPM to safeguard consumer's lives from poorly processed food products. Thus the regulatory vacuum undermines efforts to ensure the health and safety of consumers and limits the ability of authorities to enforce meaningful food standards for children.

Potential resistance from food industry:

Producers of highly processed foods, including manufacturers of sugary snacks and beverages, regard the Nutrient Profiling Model (NPM) as a threat to their profit margins and brand reputation. However, NPM is not aimed at infringing upon their lawful trading rights, nor does it seek to restrict consumers' right to freedom of choice (Aboneka Micheal v Watoto Church (U) Ltd, Constitution Petition No. 19 of 2018). Rather, the ultimate objective of the NPM is to address the escalating public health crisis linked to the widespread availability and consumption of unregulated processed foods in the market.



RECOMMENDATIONS

1. Consumer awareness, education movements and campaigns on adequate food and nutrition: even with a nutrient profile model and related policies, children and other consumers need to understand labels and nutrition information for their dietary choices to change.
2. Build monitoring and evaluation mechanisms: metrics to track nutrient intakes, assess compliance, observe changes in dietary patterns, and health outcomes (stunting rates, obesity, NCD incidence etc.).
3. Ensure policies are equitable: consider affordability, rural-urban disparities, integrate nutrition objectives into social protection and food assistance programs to ensure poor and vulnerable populations can access nutrient-dense foods.
4. Mandatory Front-of-Pack Warning Labels (FOPWL): Adopt clear, high-contrast octagonal warning labels (e.g., "HIGH IN SUGAR / SODIUM") on packaged foods exceeding NPM thresholds to ensure instant understanding by children and low-literacy consumers.
5. Product Reformulation Mandates and Local Food System Support: Enforce reformulation targets for food manufacturers while using fiscal measures (such as SSB taxes) to subsidize local, fresh, and indigenous nutrient-dense food systems.